

ASCII MASTER FLOW – PANEL 1/12: Ombudsman evolution and statutory identity

ROOT QUESTION

How can high public office be investigated without merging complaint, police and court?

1809 Sweden -> ombudsman model.

1966 First ARC -> Union Lokpal + State Lokayuktas.

1968 onward -> repeated Bills.

2013 Act -> assent 1 January 2014 -> commencement 16 January 2014.

LEGAL IDENTITY

statutory | corruption-specific | Union institution | no general suo-motu route.

CORE DISTINCTION

Lokpal directs a legal process; the Special Court decides criminal guilt.

MUST REMEMBER: Treat Lokpal as a statutory corruption-complaint institution under the 2013 Act, not as a constitutional court, police force or ombudsman for every grievance.

ASCII MASTER FLOW – PANEL 2/12: Composition and eligibility

COMPOSITION

Chairperson + not more than eight Members.

50% judicial | at least 50% from named social categories.

ELIGIBILITY

judicial and eminent-person routes have distinct statutory conditions.

TRAP

representation applies to Members; it is not an extra seat count.

CURRENT ROSTER: 5 SEPTEMBER 2026

Chairperson: Justice Ajay Manikrao Khanwilkar.

Judicial Members: Justice L. Narayana Swamy | Justice Sanjay Yadav
| Justice Ritu Raj Awasthi.

Members: Sushil Chandra | Pankaj Kumar | Ajay Tirkey.

No occupant is inferred for an unfilled statutory seat.

ASCII MASTER FLOW – PANEL 3/12: Selection, tenure and removal

SELECTION

PM | Speaker | LoP | CJI/nominee | eminent jurist.

Search Committee assists; President appoints on recommendation.

TENURE

five years or age seventy | no reappointment.

REMOVAL

misbehaviour: President -> Supreme Court inquiry.

Specified direct-removal grounds remain separate.

Common Cause v. Union of India (2017): vacancy did not make the Act unworkable.

ASCII MASTER FLOW – PANEL 4/12: Jurisdiction over persons and entities

PERSONS

PM | Ministers | MPs | Groups A-D | former covered functionaries.

ENTITIES

government-linked bodies and specified donation/foreign-contribution recipients,
subject to statutory thresholds.

TRAP

coverage is conditional; Lokpal has no general private-sector jurisdiction.

ASCII MASTER FLOW – PANEL 5/12: Prime Minister and parliamentary privilege

PM FILTER

excluded domains: international relations | security | public order | atomic energy | space.
Full bench + two-thirds approval | in camera | record controls.

MP RULE

section 14(2) preserves genuine speech/vote functions.
Sita Soren (2024): bribery is not immunised merely because linked to a vote.

ASCII MASTER FLOW – PANEL 6/12: Complaint and preliminary inquiry

PRESCRIBED COMPLAINT

identity + affidavit + particulars + supporting material -> scrutiny.

LOKPAL CHOICE

preliminary inquiry | investigation | lawful closure.

INQUIRY

prima facie screen -> public-servant hearing -> reasoned report.

Inquiry is not investigation and allegation is not guilt.

CLOSE DISTINCTION: Prime-Minister safeguards, parliamentary privilege, the seven-year bar, agency dependence and State-law Lokayukta variation must remain explicit.

ASCII MASTER FLOW – PANEL 7/12: Investigation, prosecution and Special Court

INVESTIGATION

CBI/other agency gathers evidence within statutory timelines.

LOKPAL BENCH

closure | departmental action | sanction/prosecution route.

PROSECUTION WING

files and conducts prosecution when directed.

SPECIAL COURT

adjudicates guilt; target one year with recorded extensions, total two years.

ASCII MASTER FLOW – PANEL 8/12: Inquiry Wing, CVC and CBI interfaces

INQUIRY WING

preliminary inquiry and prima facie assessment.

PROSECUTION WING

files and conducts prosecution when Lokpal directs.

CVC ROUTE

specified Groups A-D preliminary-inquiry categories under the statutory distribution.

CBI / DSPE ROUTE

criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.
Investigating-officer transfer in a referred matter needs Lokpal approval.

VIGILANCE / WHISTLEBLOWER / GRIEVANCE

distinct entry tests and outputs; no automatic jurisdictional substitution.

LIMIT

superintendence != power to dictate a predetermined investigative result.

ASCII MASTER FLOW – PANEL 9/12: Powers, assets and limitation

PROCESS POWERS

search/seizure | civil-court powers | provisional attachment | prosecution sanction.

ATTACHMENT

recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order
-> material sent to Special Court -> confirmation, refusal or later restoration.

SECTION 44

2016 substitution -> assets/liabilities in prescribed form and manner.
Checked official material did not yield a later fresh replacement form-and-manner rule.

LIMITATION

complaint barred after seven years from the alleged offence.

FALSE COMPLAINT

statutory safeguard requires legal proof; it must not deter bona fide disclosures.

Lok Prahari v. Union of India (2018)

electoral disclosure case; it did not restore the pre-2016 Lokpal return format.

ASCII MASTER FLOW – PANEL 10/12: Lokayuktas and federal diversity

SECTION 63

each State shall establish a Lokayukta by State law.

VARIATION AXES

single/member body | selection panel | tenure | jurisdiction | suo-motu power
| minister coverage | investigation support | recommendation/enforcement route.

DO NOT UNIVERSALISE

one State's Governor panel, age, term, Upalokayukta or report consequence.

FEDERAL GAIN

State adaptation and experimentation.

FEDERAL RISK

uneven minimum protection, vacancies and dependence on State agencies.

REFORM

model baseline + State autonomy + transparent appointments + public follow-up.

ASCII MASTER FLOW – PANEL 11/12: Cases and current legal controls

Common Cause v. Union of India (2017) -> Act workable despite committee vacancy.
Lok Prahari v. Union of India (2018) -> electoral disclosure, not section 44 restoration.
Sita Soren (2024) -> bribery outside privilege immunity.

2025 HIGH COURT-JUDGE ISSUE

Supreme Court stayed the Lokpal order; no final merits holding.

CURRENT CLAIMS

use dated primary sources; do not freeze transient statistics.

PENDING-JURISDICTION CONTROL

The Supreme Court's 20 February 2025 interim order stayed the Lokpal's
High Court-judge jurisdiction order. Do not convert the stay into a final merits rule.

ASCII MASTER FLOW – PANEL 12/12: UPSC traps and answer synthesis

PRELIMS FIREWALL

statutory, not constitutional | maximum eight Members | PM included with filters
| speech/vote exclusion | no general suo-motu power | seven-year limitation
| referred-case CBI superintendence only | Lokayukta design varies.

2025 PRELIMS ROUTE

jurisdiction + composition -> test percentage denominator, PM safeguards and privilege.

MAINS SPINE

ombudsman evolution -> legal identity -> composition/independence
-> jurisdiction -> complaint-to-court process -> agency interfaces
-> powers and safeguards -> State variation -> capacity reform.

VERDICT

Lokpal has real process powers, but credibility depends on appointments, agency autonomy, reasoned transparency and court-controlled legality rather than institutional mythology.

LEGAL/SOURCE LIMIT: Justice A. M. Khanwilkar and the six officially listed Members form the dated central roster; the 2025 High Court-judge jurisdiction order remains stayed.